

WHY NOT?

A BOOK FOR EVERY WOMAN.

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Storer

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<u>Transcriber's Notes</u>

1. Typographical errors and hyphenation inconsistencies were corrected.
2. Topic-wise navigation hyper-links added.

WHY NOT?

A BOOK FOR EVERY WOMAN.

The Prize Essay

TO WHICH THE AMERICAN MEDICAL ASSOCIATION
AWARDED THE GOLD MEDAL
FOR MDCCCLXV.

BY

HORATIO ROBINSON STORER, M.D.,

OF BOSTON,

Assistant in Obstetrics and Medical Jurisprudence in Harvard University; Surgeon
to the New England Hospital for Women; and Professor of Obstetrics
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ISSUED FOR GENERAL CIRCULATION, BY ORDER OF THE
AMERICAN MEDICAL ASSOCIATION.

*Casta placent superis. Casta cum mente venito,
Et manibus puris sumito fontis aquam.*

**BOSTON:
LEE AND SHEPARD.
1866.**

Entered, according to Act of Congress, in the year 1866, by

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Massachusetts.**

At the Sixteenth Annual Meeting of the American Medical Association, held at Boston in June, 1865, it was, upon recommendation of the Section on Practical Medicine and Obstetrics,—

Resolved, That the Committee on Publication be requested to adopt such appropriate measures as will insure a speedy and general circulation of the Prize Essay written for women; provided this can be done without expense to the Association.

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PREFATORY REMARKS.

It will be noticed that in the following Essay, the recipient of the special prize for 1864-5 of the American Medical Association, its author makes frequent reference, as to those of another, to his own previous labors. This circumstance, now that his identity has been revealed, might at first seem an infringement of the rules of good taste. In the facts, however, that he felt compelled to take unusual pains to conceal that identity prior to the decision of the Committee, with all of whose members he has long enjoyed intimate acquaintance, and that little other published material as yet exists, from which to draw upon this subject, save his own, he places his excuse, and throws himself upon the generous sympathy and forbearance of his readers.

The Essay, when placed in the hands of the Committee, was accompanied by the following statement, which it may not be out of place to reproduce at the present time:—

"The writer, knowing nothing of the project to elicit a direct and effective appeal to women upon the subject of criminal abortion, until after it had been decided at the New York meeting, ^[1] has long been a member of the Association. He is aware, from personal observation, that induced miscarriage is of very frequent occurrence, and that its effects are to the last degree disastrous to the country at large. He has seen the change that has been effected in professional feeling upon the subject as to the need that this depopulation, or rather prevention of repopulation of the country, should be arrested, since the publication of the Report of the Association's Special Committee, which was appointed at Nashville in 1857.

"It is, perhaps, presumptuous for him to undertake a task so strongly appealing to all one's eloquence, sympathy, and zeal, and for the proper performance of which there exist so many gentlemen in the profession better qualified than himself. He does it, however, as the passing traveller in distant lands, by casting his pebble upon the pile of similar contributions that mark a single wayside grave, helps raise a monument to warn of danger and to tell of crime, in the hope that this waif of his may, perchance, effect

somewhat toward arousing the nation to the countless foetal deaths intentionally produced each day in its midst, and to prevent them.

"The Association has empowered the Prize Committee to award the premium of the present year to the best popular tract upon the subject of induced abortion. The writer presents the accompanying paper neither for fame nor for reward. It has been prepared solely for the good of the community. If it be considered by the Committee worthy its end, they will please adjudge it no fee, nor measure it by any pecuniary recompense. Were the finances of the Association such as to warrant it in more than the most absolutely necessary expenditures, yet would the approbation of the Committee, and of the profession at large, be more grateful to the writer than any tangible and therefore trivial reward.

"It is a singular and appropriate coincidence that the action of the Association, originating as it did from Boston, in 1857, and recognizing in no uncertain language, alike by the resolutions that were formally adopted by the Louisville Convention, and by the memorial presented by its President to the different legislative assemblies and State Medical Societies of the Union, the necessity of a radical change as to the popular estimate of the crime,—should now culminate and become effective at a meeting of the Association in Boston, by an authorized appeal in behalf of the profession to the community, which alone makes and enforces the laws, till now a dead letter as regards abortion, and which alone commits, palliates, and suffers from the crime. It is an equally striking and appropriate coincidence that the Chairman of the Committee, at whose hands the selection of that appeal must be made, though the Committee had been chosen for a general purpose before it had been decided by the Association to elicit essays upon this special subject, should be the physician who, in New England, first appreciated the frequency of criminal abortions, pointed out their true character, and denounced them.

"If this Essay prove successful, its author only asks that the seal which covers his identity may not be broken until the announcement is made upon the platform of the Convention, pledging himself that this is but for a whim of his own, and that he is well, and he trusts favorably known, by many of the best men of the Association throughout the Union."[\[2\]](#)

There is one point, in connection with the present Essay, to which I feel bound, in fairness alike to my professional brethren and to those for whom I have now written, to direct attention.

As every author who has decided opinions, and is alive to their importance, must naturally and very necessarily do, I have incidentally taken occasion to express myself upon certain collateral topics, but only in so far as they were directly connected with, and germane to, the main subject under discussion. Such statements are all of them to be considered merely as expressions of my own individual opinion, and not as the views, necessarily, of the mass of the profession.

An instance of the kind referred to is where I allude to the advantages of giving anæsthetics in child-bed, even though the labor is what is termed a natural one; and I adduce correspondence upon this subject in an appendix to the Essay.

As upon some of these questions physicians honestly differ among themselves, I have thought this disclaimer alike due to others and to myself; they are matters, however, only incidental to the Essay, upon the general subject of which the profession are wholly unanimous in opinion.

HOTEL PELHAM, BOSTON,
April, 1866.

WHY NOT?

A BOOK FOR EVERY WOMAN.

I.—Origin and Purpose of the Present Essay.

AT the meeting of the American Medical Association, held at New York, in 1864, it was, after mature deliberation, decided to issue "a short and comprehensive tract, for circulation among females, for the purpose of enlightening them upon the criminality and physical evils of forced abortions."

The source of this Essay is, therefore, in itself, well worthy attention. The Association referred to represents the medical profession of America, for it is composed of delegates, and only of delegates, from every regularly organized hospital, medical society, and medical college throughout the land, its members being, therefore, almost all of them gentlemen advanced in years, of extended experience, and of acknowledged reputation. That they should unanimously have concurred in recommending any measure is, so far, proof that it was needed.

There are those, perhaps, who may suppose that in advising that pregnancies, once begun, should be allowed to go on to their full period, physicians are actuated by a selfish motive. On the contrary, it will be shown that miscarriages are often a thousand fold more dangerous in their immediate consequences, and, therefore, more decidedly requiring medical treatment, than the average of natural labors; that they are not only frequently much more hazardous to life at the time, but to subsequent health, their results in some instances remaining latent for many years, at times not showing themselves until the so-called turn of life, and then giving rise to uncontrollable and fatal hemorrhage, or to the development of cancer, or other incurable disease. It is in reality the physician's province,

indeed, it is his sacred duty, to prevent disease as well as to cure it, and this, even though it must plainly lessen the business and the emoluments that would otherwise fall into his hands. Would women listen to the appeal now to be made them, an immense deal of ill-health would be prevented, and thousands of maternal as well as foetal lives would annually be saved.

And, moreover, in the fact that the profession thus transcends, almost for the first time, upon any matter in this country, the barrier which for mutual protection, both of science and the community, has always been allowed to stand, and directly addresses itself to the judgment and to the hearts of women upon a question vital to themselves and to the nation, there is afforded most conclusive evidence that the subject is of the highest importance, that the step now taken is a necessary one, and the motives that prompt it sincere.

To women, on the other hand, how interesting the topic! It is one that affects, and more directly, perhaps, than can anything else, their health, their lives. It concerns their discretion, their conscience, their moral character, their peace of mind, even its very possession, for cases of insanity in women from the physical shock of an induced abortion, or from subsequent remorse, are not uncommon. It involves often all the elements of domestic happiness, the extent or existence of the home circle, the matron's own self-respect, and often the very gift or return of conjugal love; for, as has forcibly been asserted of marriage where conception or the birth of children is intentionally prevented, such is, in reality, but legalized prostitution, a sensual rather than a spiritual union.

Who can deny these premises? The experience of every physician confirms them, as do a glance throughout every circle of society, and the experience, personal or by observation, of almost every nurse, every matron, every mother. Let us then, physicians and the community, meet each other half way—ready to acknowledge, upon due evidence, the frightful extent of the evil that exists in our homes—an evil, in part occasioned by ignorance and carelessness, and that we are both, in a measure, accountable for, and should be ready to assist each other in its cure. I propose to show that induced abortions are not only a crime against life, the child being always alive, or practically supposed to be so; against the mother, for the laws do not allow suicide, or the commission of acts upon one's own person involving great risk to life; against nature and all

natural instinct, and against public interests and morality, but that, barring ethical considerations, and looked at in a selfish light alone, they are so dangerous to the woman's health, her own physical and domestic best interests, that their induction, permittal, or solicitation by one cognizant of their true character, should almost be looked upon as proof of actual insanity.

II.—What has been done by Physicians to Foster, and what to Prevent, this Evil.

In our appeal we shall endeavor to go straight towards the mark, nothing concealing, undervaluing, or selfishly excusing. And, first of all, what part have physicians had in this great tragedy, wherein so many women have been chief players? For it is to the medical attendant that the community have a right to look for counsel, for assistance, and for protection, and the present is an evil more especially and directly coming within these bounds.

From time immemorial such have been the deplorable tendencies of unbridled desire, of selfishness and extravagance, of an absence of true conjugal affection, there has existed in countless human breasts a wanton disregard for fœtal life, a practical approval of infanticide. This has, however, in the main been confined either to savage tribes, or to nations, like the Chinese, with a redundant population, with each of whom the slaughter of children after their birth is common, or to the lowest classes of more civilized communities, impelled either by shame, or, as in the burial clubs of the London poor, the revelations of which a year or two since so startled the world, by the stimulus of comparatively excessive pecuniary gain.

That infanticide is of occasional occurrence in our own country, the effect of vice or of insanity, has long been known; instances being occasionally brought to the surface of society, and to notice by the police, and through courts of law.

The closely allied crime of abortion also dates back through all history, like every other form or fruit of wickedness, originating in those deeply-lying passions coeval with the existence of mankind. Till of late, however, even physicians, who from time to time have accidentally become cognizant of an isolated instance, have supposed or hoped (and here the wish was father to the thought), that the evil was of slight and trivial extent, and therefore, and undoubtedly with the feeling that a thing so frightful and so repugnant to every instinct should be ignored, the profession have, until within a few years, preserved an almost unbroken silence upon the subject.

Some ten years since, this matter was thoroughly taken in hand by a physician much interested in the diseases of women, the younger Dr. Storer, of Boston, with the frank acknowledgment that it was to his father, the Professor of Midwifery in Harvard University, that the credit of initiating the anti-abortion movement in New England was justly due. Prof. Hodge, of Philadelphia, like the elder Dr. Storer, had previously commented, in a public lecture to his class, afterwards printed, upon the immorality and frequency of induced miscarriage; and in Europe one or two physicians of eminence, as Dr. Radford, had endeavored to arouse the profession to the real value of foetal life. The subject had also received some slight attention in works upon medical jurisprudence, but in special treatises upon abortion and sterility, their causes and treatment, of which the most celebrated has been that of Dr. Whitehead, of England, the chance of this occurrence and condition being dependent upon a criminal origin had been almost entirely lost sight of. In investigating the cases of disease in the better classes that came under observation, it was now ascertained that a very large proportion of them were directly owing to a previous abortion, and that in many of them this occurrence had been intentional; the physician's consultation room proving in reality a confessional, wherein, under the implied pledge of secrecy and inviolate confidence, the most weighty and at times astounding revelations are daily made. In such instances as those to which we are now referring, the disclosures are in answer to no idle curiosity, but to the necessity which always exists of knowing and understanding every point relating to the causation, the treatment, the cure of obscure disease.

The profession were soon aroused to an appreciation of facts, whose existence it was shown could so easily be proved by every physician, and in 1857 a Committee, consisting of some of the more prominent and most reliable practitioners in various parts of the country, with the younger Storer as Chairman, was appointed by the American Medical Association, at its meeting in Nashville, to investigate the crime with a view to its possible suppression.^[3] The report of this Committee was rendered at Louisville, in 1859, and, supported as it was by a mass of evidence of almost boundless scope, the measures proposed, chiefly of a legislative character, were unanimously indorsed by the Association. The evidence upon which the report was based was subsequently published at Philadelphia, as a separate volume, "the first of a series of contributions to Obstetric Jurisprudence" by its writer, under the title of "Criminal Abortion in America," and was

feelingly dedicated "to those whom it may concern—Physician, Attorney, Juror, Judge, and Parent."

This detail, otherwise out of place in an appeal to the community, is rendered perhaps necessary, that an exact and true impression may be given of the steps that have been taken by medical men to redeem themselves from the imputation of having been sluggish guardians of the public weal. Since the time of the Louisville report, the profession have been fully alive to the claims of the subject, and it is not with unnatural satisfaction that its author, in a subsequent publication,^[4] has taken occasion to observe that the importance and legitimacy of the investigation has now been acknowledged in the current files of every medical journal, in the published transactions of the national and minor medical associations, in many medical addresses, as that by Dr. Miller, of Louisville, at the meeting of the Association at New Haven, in 1860, over which he presided, and in nearly every general obstetric work of any importance issued in this country since that date, Bedford's Principles and Practice of Obstetrics, for instance, and in many works of criminal law and medical jurisprudence, as Elwell, Wharton and Stillé, and Hartshorne's edition of Taylor, to a much greater extent than the subject in these works had ever been treated before.

I am constrained to acknowledge my indebtedness to the various publications of the writer from whom I have quoted, for much of the evidence I shall now present upon the subject of forced abortions. I trust that thus offered it may lose none of its freshness, point, and force. My frequent extracts from one who has given more thought to the subject than probably any other person in the country, will, I am sure, need no excuse.

An opinion has obtained credence to a certain extent, and it has been fostered by the miserable wretches, for pecuniary gain, at once pandering to the lust and fattening upon the blood of their victims, that induced abortions are not unfrequently effected by the better class of physicians. Such representations are grossly untrue, for wherever and whenever a practitioner of any standing in the profession has been known, or believed to be guilty of producing abortion, except absolutely to save a woman's life, he has immediately and universally been cast from fellowship, in all cases losing the respect of his associates, and frequently, by formal action, being expelled from all professional associations he may have held or enjoyed.

The old Hippocratic oath, to which each of his pupils was sworn by the father of medicine, pledged the physician never to be guilty of unnecessarily inducing miscarriage. That the standard, in this respect, of the profession of the present day has not deteriorated, is proved by the first of the resolutions adopted by the Convention at Louisville, in 1859: "That while physicians have long been united in condemning the procuring of abortion, at every period of gestation, except as necessary for preserving the life of either mother or child, it has become the duty of this Association, in view of the prevalence and increasing frequency of the crime, publicly to enter an earnest and solemn protest against such unwarrantable destruction of human life. "[5]

It is true, however, that while physicians are unanimous as to the sanctity of foetal life, they have yet to a certain extent innocently and unintentionally given grounds for the prevalent ignorance upon this subject, to which I shall soon allude. The fact that in some cases of difficult labor it becomes imperatively necessary to remove the child piecemeal, if dead, or, if living, to destroy it for the sake of saving the mother's life, ought not to imply that the physician has attached a trifling value to the child itself. Compared with the mother, who is already mature and playing so important a part in the world, he justly allows the balance to fall, but he fully recognizes that he is assuming a tremendous responsibility, that his action is only justified by the excuse of dire necessity, and he suffers, if he is a man of any sensibility and feeling, an amount of mental anguish not easily to be described, and that none of us, who have been compelled to so terrible a duty, need feel ashamed to confess.

There are cases again, where, during pregnancy, the patient may be reduced by the shock of severe and long-continued pain or excessive vomiting, and its consequent inanition, to the verge of the grave. In such instances, it has been supposed that abortion was necessary to preserve the woman's life. The advance of science, however, has now shown that this procedure is not only often unnecessary, but in reality unscientific; the disturbances referred to occurring, as they generally do, in the earlier months of gestation, being owing not to the direct pressure of the womb upon the stomach or other organs, but to a so-called reflex and sympathetic disturbance of those organs, through the agency of the nervous system; and

that a cure can in general be readily effected without in any way endangering the vitality of the child.

There are other instances that might be cited, cases of dangerous organic disease, as cancer of the womb, in which, however improbable it might seem, pregnancy does occasionally occur; cases of insanity, of epilepsy, or of other mental lesion, where there is fear of transmitting the malady to a line of offspring; cases of general ill-health, where there is perhaps a chance of the patient becoming an invalid for life; but for all these, and similar emergencies, there is a single answer, and but this one—that abortion, however it may seem indicated, should never be induced by a physician upon his own uncorroborated opinion, and, in a matter so grave, affecting, with his own reputation, the life of at least one, if not of a second human being, every man worthy of so weighty and responsible a trust will seek in consultation a second opinion. This is a matter of such importance to the welfare of the community, that long ago the law should have provided for its various dangers, and should wisely have left it to no man's discretion or purity of character to withstand the tremendous temptations which must be allowed to here exist. The law now provides, in one or more at least of our States, that the certificate of a single physician, no matter what his skill or standing, cannot commit a patient to the often necessary and beneficial seclusion of a lunatic asylum; two are required. How much more requisite is it that in the question we are now considering, to one mode of deciding which the physician may be prompted by pity, by personal sympathy, the entreaties of a favorite patient, and not seldom by the direct offer of comparatively enormous pecuniary compensation, the law should offer him its protecting shield, saving him even from himself, and helping him to see that the fee for an unnecessarily induced or allowed abortion is in reality the price of blood. As a class, it cannot be gainsaid that physicians of standing will spurn with indignation the direct bribe; let them look to it that they never carelessly permit what they condemn, by endeavoring to bring on the woman's periodical discharge when it is possible that she may have conceived, or by carelessly passing an instrument into her womb without ascertaining whether or no it contain the fruit of impregnation, or by allowing the completion of a miscarriage that may threaten or even have commenced, without resorting to every measure, of whatever character, that can possibly result in its arrest, and the consequent completion of the full period.

III.—*What is the True Nature of an Intentional Abortion when not Requisite to Save the Life of the Mother.*

There are those who will be influenced by evidence presented from abstract morality and religion. To such I shall first address myself. There are others who care nothing for ethical considerations, and who arrogate to themselves a right to decide as to the morality of taking or destroying the life of an unborn child. For these, also, I have an unanswerable argument—their own self-interest—an appeal to which will usually arrest the most hardened adept in other crime, much more these intelligent and otherwise innocent women, who have mostly erred through ignorance and a misapprehension of their own physical condition, and their own physical dangers, their own physical welfare.

Physicians have now arrived at the unanimous opinion, that the foetus in utero is *alive* from the very moment of conception.

"To extinguish the first spark of life is a crime of the same nature, both against our Maker and society, as to destroy an infant, a child, or a man."^[6]

More than two hundred years ago the same idea was as vigorously as quaintly expressed: "It is a thing deserving all hate and detestation that a man in his very originall, whiles he is framed, whiles he is enlived, should be put to death under the very hands and in the shop of nature."^[7]

The law, whose judgments are arrived at so deliberately, and usually so safely, has come to the same conclusion, and though in some of its decisions it has lost sight of this fundamental truth, it has averred, in most pithy and emphatic language, that "quick with child, is having conceived."^[8]

By that higher than human law, which, though scoffed at by many a tongue, is yet acknowledged by every conscience, "the wilful killing of a human being, at any stage of its existence, is murder."^[9]

Abortion or miscarriage is known by every woman to consist of the premature expulsion of the product of conception. It is not as well known,

however, if the statements of patients are to be relied upon, that this product of conception is in reality endowed with vitality from the moment of conception itself. It is important, therefore, to decide in what the moment of conception consists. It has now been ascertained that every variety of animal life originates from an egg, even primarily those lowest forms in which occur the phenomena of so-called alternate generation; in each and every one of them, mammals or invertebrates, the origin is from as distinct an egg as is laid by bird, tortoise, or fish; the human species being no exception to this general rule. Before this egg has left the woman's ovary, before impregnation has been effected, it may perhaps be considered as a part and parcel of herself, but not afterwards. When it has reached the womb, that nest provided for the little one by kindly nature, it has assumed a separate and independent existence, though still dependent upon the mother for subsistence. For this end the embryo is again attached to its parent's person, temporarily only, although so intimately that it may become nourished from her blood, just as months afterwards it is from the milk her breasts afford. This is no fanciful analogy; its truth is proved by countless facts. In the kangaroo, for instance, the offspring is born into the world at an extremely early stage of development, "resembling an earthworm in its color and semi-transparent integument,"^[10] and then is placed by the mother in an external, abdominal, or marsupial pouch, to portions of which corresponding, so far as function goes, at once to teats and to the uterine sinuses, these embryos cling by an almost vascular connection, until they are sufficiently advanced to bear detachment, or in reality to be born. The first impregnation of the egg, whether in man or in kangaroo, is the birth of the offspring to life; its emergence into the outside world for wholly separate existence is, for one as for the other, but an accident in time. It has been asserted by some authors, as by Meigs, that conception is only coincident with the attachment of the impregnated egg to the uterine cavity for its temporary abode therein, or, in exceptional cases, as in extra-uterine pregnancy so called, with its attachment to some other tissue of the mother; thereby attempting to establish a difference between impregnation and conception; a difference that is at once philosophically unfounded, and plainly disproved by all analogical evidence, as the fact, for instance, that in most fishes impregnation occurs entirely external to the body of the mother, from which the ova had previously, or during the process of copulation, permanently been discharged.

Many women suppose that the child is not alive till quickening has occurred, others that it is practically dead till it has breathed. As well one of these suppositions as the other; they are both of them erroneous.

Many women never quicken at all, though their children are born living; others quicken earlier or later than the usual standard of time; or, others again may, in their own persons, have noticed either or all of these peculiarities in different pregnancies. Quickening is in fact but a sensation, the perception of the first throes of life—but of a twofold occurrence, and this not merely the motion of the child, but often the sudden emergence of the womb upwards from its confinement in the low regions of the pelvis into the freer space of the abdomen. The motions of the child, which have been proved by Simpson, of Edinburgh, to be its involuntary efforts, through the reflex action of its nervous system, to retain itself in certain attitudes and positions essential to its security, its sustenance, and its proper development, are usually present for a period long prior to the possibility of their being perceived by the parent. They may very constantly be recognized by the physician in cases where no sensation is felt by the mother, and the fœtus has been seen to move when born, during miscarriage, at a very early period.

During the early months of pregnancy, while the fœtus is very small in proportion to the size of the cavity which contains it, sounds, produced by its movements, may be distinguished by the attentive ear applied to the abdomen of the mother, as gentle taps repeated at intervals, and continued uninterruptedly for a considerable time. These sounds may sometimes be heard several weeks before the usual period of the mother's becoming conscious of the motion of the child, and also earlier than the pulsations of the fœtal heart or the uterine souffle,^[11] as the murmur of the circulation in the walls of that organ, or in the tissue of the after-birth, is technically termed. These motions must be allowed to prove life, and independent life. In what does this life really differ from that of the child five minutes in the world? Is not, then, forced abortion a crime? Moreover, instances have occurred where, the membranes having been accidentally ruptured, the child has breathed, and even cried, though yet unborn, as proved alike by the sounds within the mother, well authenticated by bystanders, and by auscultation of her abdomen, and by the fact that sometimes, when not born living, the lungs of the fœtus have been found fully expanded, a process

which can be effected only by respiration, and of which the proofs are such as can be occasioned in no other way whatever.

In the majority of instances of forced abortion, the act is committed prior to the usual period of quickening. There are other women, who have confessed to me that they have destroyed their children long after they have felt them leap within their womb. There are others still, whom I have known to wilfully suffocate them during birth, or to prevent the air from reaching them under the bedclothes; and there are others, who have wilfully killed their wholly separated and breathing offspring, by strangling them or drowning them, or throwing them into a noisome vault. Wherein among all these criminals does there in reality exist any difference in guilt?

I would gladly arrive at, and avow any other conviction than that I have now presented, were it possible in the light of fact and of science, for I know it must carry grief and remorse to many an otherwise innocent bosom. The truth is, that our silence has rendered all of us accessory to the crime, and now that the time has come to strip down the veil, and apply the searching caustic or knife to this foul sore in the body politic, the physician needs courage as well as his patient, and may well overflow with regretful sympathy.

That there has existed a wide and sincere ignorance of the true character of the act, I have already allowed; it is a point to which I shall again refer. At present let us turn from the crime against the child, to the crime as against the mother's own life and health. I here refer more particularly to her own agency therein. Of the guilt of abortion when committed by another person than herself, and with reference both to the mother's life and that of the child, there can be no doubt, but it is to the woman's own agency in the act, as principal, or accessory by its solicitation or permission, that we have now to deal; not as to its abstract wrong alone, but as to its physical dangers, and therefore its utter folly.

IV.—The Inherent Dangers of Abortion to a Woman's Health and to her Life.

It is generally supposed, not merely that a woman can wilfully throw off the product of conception without guilt or moral harm, but that she can do it with positive or comparative impunity as regards her own health. This is a very grievous and most fatal error, and I do not hesitate to assert, from extended observation, that, despite apparent and isolated instances to the contrary—

1. A larger proportion of women die during or in consequence of an abortion, than during or in consequence of childbed at the full term of pregnancy;

2. A very much larger proportion of women become confirmed invalids, perhaps for life; and,

3. The tendency to serious and often fatal organic disease, as cancer, is rendered much greater at the so-called turn of life, which has very generally, and not without good reason, been considered as especially the critical period of a woman's existence.

These, as I have said, are conclusions that cannot be gainsaid, as they are based on facts; and that these facts are merely what ought, in the very nature of things, to occur, can readily enough be shown.

1. Nature does all her work, of whatever character it may be, in accordance with certain simple and general laws, any infringement of which must necessarily cause derangement, disaster, or ruin.

In the present instance, it has been ascertained, by careful dissections and microscopic study, that the woman's general system, both as a whole and as regards each individual organ and its tissues, is slowly and gradually prepared for the great change which naturally occurs at the end of nine months' gestation; and that if this change is by any means prematurely induced, whether by accident or design, it finds the system unprepared. Not even do I except from this law the earlier months of pregnancy, when it is thought by so many that abortion can be brought on without any physical shock.

During pregnancy all the vital energies of the mother are devoted to a single end: the protection and nourishment of the child. Such wise provision is made for its security, such intimate vascular connection is established between the foetal circulation and the blood-vessels of the mother, that its premature rupture is usually attended by profuse hemorrhage, often fatal, often persistent to a greater or less degree for many months after the act has been completed, and always attended with more or less shock to the maternal system, even though the full effect of this is not noticed for years.

In birth at the full period, it is found that what is called by pathologists fatty degeneration of the tissues, occurs both in the walls of the mother's womb, and in the placenta or after-birth, by which attachment is kept up with the child. This change, in all other instances a diseased process, is here an essential and healthy one. By it the occurrence of labor at its normal period is to a certain extent determined; by it is provision made against an inordinate discharge of blood during the separation and escape of the after-birth, and by it is the return of the uterus to the comparatively insignificant size, that is natural to it when unimpregnated, insured. Any deviation from this process at the full term, which prevents the whole chain of events now enumerated from being completed, lays the foundation of, and causes a wide range of uterine accidents and disease, displacements of various kinds, falling of the womb downwards or forwards or backwards, with the long list of neuralgic pains in the back, groins, thighs, and elsewhere that they occasion; constant and inordinate leucorrhœa; sympathetic attacks of ovarian irritation, running even into dropsy, &c., &c. These are only a portion of the results that might be enumerated.

Now, while all this is true of any interference with the natural process at the full time, it is just as true, and if anything more certain, when pregnancy has been prematurely terminated; and out of many hundred invalid women, whose cases I have critically examined, in a very large proportion I have traced these symptoms, to the mental conviction of the patient, as well as to my own, directly back to an induced abortion.

Again—not merely does nature prepare the appendages of the child and the womb of its mother for the separation that in due time is to ensue between them, it also provides an additional means of insuring its successful accomplishment through the action that takes place in the woman's breasts, namely, the secretion of the milk. Though the escape of

this fluid does not ordinarily occur in any quantity until some little time after birth has been effected, yet the changes that ensue have gradually been progressing for days, or weeks, or even months; for, as is well known, in some women the lacteal secretion is present before birth, at times even during a large part of pregnancy, and in all women there is doubtless a decided tendency of the circulation towards the breasts, prior to the birth of the child, just as there has been so extreme a tendency of the circulation for so long a time towards the womb. It is indeed to take the place of the latter that the former is established, and to prevent the evil consequences that might otherwise ensue. The sympathy between the mammary glands and the uterus is now well established; it is shown in many different ways: in some women the application of the child to the breasts is immediately followed by after-pains, and in others these pains, which are usually but contractions of the womb to expel any clots that may have accumulated, are attended by a freer secretion or discharge of the milk. It is not uncommon, when the monthly discharge is scanty or suddenly checked, for the breasts to become enlarged and painful, as is so often the case soon after impregnation, while, on the other hand, one of the most efficient means we have of establishing the periodical flow, when suppressed, is by the application of sinapisms to the surface of the breasts. In view of these facts it will readily be understood why it is that women who make good nurses are so much less likely than others to suffer from the various disorders of the womb, and why they are also less likely to rapidly conceive, and why, moreover, too long lactation should not be indulged in for either of these so desirable ends. The demands of fashion shorten or prevent nursing, the demands of fashion often forbid a woman from bearing children; but whether this is attained by the prevention of impregnation, or by the induction of miscarriage, it is almost inevitably attended, as is to a certain extent the sudden cessation of suckling, by a grievous shock to the mother's system, that sooner or later undermines her health, if even it does not directly induce her death.

I have asserted that dangers attend the occurrence of abortion which directly threaten a mother's life. This is true of all miscarriages, whether accidental or otherwise; but these dangers are enhanced when the act is intentional. When caused by an accident, the disturbance is often of a secondary character, the vitality of the ovum being destroyed, or the activity of the maternal circulation checked, before the separation of the two beings

from each other finally takes place. But in a forced abortion there is no such preservative action; the separation is immediate if produced by instruments, which often besides do grievous damage to the tissues of the mother with which they are brought into contact, lacerating them, and often inducing subsequent sloughing or mortification; or, if the act is effected by medicines, it is usually in consequence of violent purgation or vomiting, which of themselves often occasion local inflammation of the stomach or intestines, and death. Add to this that even though the occurrence of any such feeling may be denied, there is probably always a certain measure of compunction for the deed in the woman's heart—a touch of pity for the little being about to be sacrificed—a trace of regret for the child that, if born, would have proved so dear—a trace of shame at casting from her the pledge of a husband's or lover's affection—a trace of remorse for what she knows to be a wrong, no matter to what small extent, or how justifiable, it may seem to herself, and we have an explanation of the additional element in these intentional abortions, which increases the evil effect upon the mother, not as regards her bodily health alone, but in some sad cases to the extent even of utterly overthrowing her reason.

The causes of an immediately or secondarily fatal result of labor at the full period are few; in abortion nearly every one of these is present, with the addition of others peculiar to the sudden and untimely interruption of a natural process, and the death of the product of conception. There is the same or greater physical shock, the same or greater liability to hemorrhage, the same and much greater liability to subsequent uterine or ovarian disease. To these elements we must add another, and by no means an unimportant one; a degree of mental disturbance, often profound, from disappointment or fear, that to the same extent may be said rarely to exist in labors at the full period. ^[12]

Viewing this subject in a medical light, we find that death, however frequent, is by no means the most common or the worst result of the attempts at criminal abortion. This statement applies not to the mother alone, but, in a degree, to the child.

We shall perceive that many of the measures resorted to are by no means certain of success, often indeed decidedly inefficacious in causing the immediate expulsion of the fœtus from the womb; though almost always

producing more or less severe local or general injury to the mother, and often, directly or by sympathy, to the child.

The membranes or placenta may be but partially detached, and the ovum may be retained. This does not necessarily occasion degeneration, as into a mole, or hydatids, or entire arrest of development. The latter may be partial, as under many forms, from some cause or another, does constantly occur; if from an unsuccessful attempt at abortion, would this be confessed, or indeed always suggest itself to the mother's own mind? Fractures of the fœtal limbs, prior to birth, are often reported, unattributable in any way to the funis, which may amputate, indeed, but seldom break a limb. A fall or a blow is recollected; perhaps it was accidental, perhaps not, for resort to these for criminal purposes is very common. In precisely the same manner may injury be occasioned to the nervous system of the fœtus, as in a hydrocephalic case long under the writer's own observation, where the cause and effect were plainly evident. Intrauterine convulsions have been reported; as induced by external violence they are probably not uncommon, and the disease thus begun may eventuate in epilepsy, paralysis, or idiocy.

To the mother there may happen correspondingly frequent and serious results. Not alone death, immediate or subsequent, may occur from metritis, hemorrhage, peritonitic, or phlebitic inflammation, from almost every cause possibly attending not merely labor at the full period, comparatively safe, but miscarriage increased and multiplied by ignorance, by wounds, and violence; but if life still remain, it is too often rendered worse than death.

The results of abortion from natural causes, as obstetric disease, separate or in common, of mother, fœtus, or membranes, or from a morbid habit consequent on its repetition, are much worse than those following the average of labors at the full period. If the abortion be from accident, from external violence, mental shock, great constitutional disturbance from disease or poison, or even necessarily induced by the skilful physician in early pregnancy, the risks are worse. But if, taking into account the patient's constitution, her previous health, and the period of gestation, the abortion has been criminal, these risks are infinitely increased. Those who escape them are few.

In thirty-four cases of criminal abortion reported by Tardieu, where the history was known, twenty-two were followed, as a consequence, by death,

and only twelve were not. In fifteen cases necessarily induced by physicians, not one was fatal.

It is a mistake to suppose, with Devergie, that death must be immediate, and owing only to the causes just mentioned. The rapidity of death, even where directly the consequence, greatly varies; though generally taking place almost at once if there be hemorrhage, it may be delayed even for hours where there has been great laceration of the uterus, its surrounding tissues, and even of the intestines; if metro-peritonitis ensue, the patient may survive for from one to four days, even, indeed, to seven and ten. But there are other fatal cases, where on autopsy there is revealed no appreciable lesion, death, the penalty of unwarrantably interfering with nature, being occasioned by syncope, by excess of pain, or by moral shock from the thought of the crime.

That abortions, even when criminally induced, may sometimes be safely borne by the system, is of little avail to disprove the evidence of numberless cases to the contrary. We have instanced death. Pelvic cellulitis, on the other hand, fistulæ, vesical, uterine, or between the organs alluded to; adhesions of the os or vagina, rendering liable subsequent rupture of the womb, during labor or from retained menses, or, in the latter case, discharge of the secretion through a Fallopian tube, and consequent peritonitis; diseases and degenerations, inflammatory or malignant, of both uterus and ovary; of this long and fearful list, each, too frequently incurable, may be the direct and evident consequence, to one patient or another, of an intentional and unjustifiable abortion.

We have seen that, in some instances, the thought of the crime, coming upon the mind at a time when the physical system is weak and prostrated, is sufficient to occasion death. The same tremendous idea, so laden with the consciousness of guilt against God, humanity, and even mere natural instinct, is undoubtedly able, where not affecting life, to produce insanity. This it may do either by its first and sudden occurrence to the mind, or, subsequently, by those long and unavailing regrets, that remorse, if conscience exist, is sure to bring. Were we wrong in considering death the preferable alternative?^[13]

To the above remarks it might truthfully be added, that not only is the foetus endangered by the attempt at abortion, and the mother's health, but

that the stamp of disease thus impressed is very apt to be perceived upon any children she may subsequently bear. Not only do women become sterile in consequence of a miscarriage, and then, longing for offspring, find themselves permanently incapacitated for conception, but, in other cases, impregnation, or rather the attachment of the ovum to the uterus, being but imperfectly effected, or the mother's system being so insidiously undermined, the children that are subsequently brought forth are unhealthy, deformed, or diseased. This matter of conception and gestation, after a miscarriage, has of late been made the subject of special study, and there is little doubt that from this, as the primal origin, arises much of the nervous, mental, and organic derangement and deficiency that, occurring in children, cuts short or embitters their lives.

It may be alleged by those who, sceptical or not sceptical as to these conclusions, have reason, nevertheless, to desire to throw discredit upon them, that the weekly or annual bills of mortality, the mortuary statistics, do not show such direct influence from the crime of abortion as I have claimed exists.

On the other hand, it must not be forgotten that in these cases there is always present every reason for concealment. In the earlier months of pregnancy it is very difficult to prove, in the living subject, that pregnancy has occurred. Such a conclusion being arrived at, before the sound of the foetal heart can be heard, for this is the only sign that is positively certain, by merely circumstantial and probable evidence, which becomes of weight only as it is accumulated and found corroborative. In the dead subject, the victim of an abortion in the earlier months, the case is often equally obscure, or at least doubtful, unless the product of conception has not yet escaped, or, having been thrown off, has been detected or preserved. When found, it of course proves pregnancy, whether the parent be living or dead; that is, in the former instance, if its discharge can be traced directly to the woman in question, and to no other, and correlative circumstances may show that an abortion has occurred; but this may have been accidental and guiltless. Where the act has been committed by an accomplice, the proofs of such commission and of the intent, though this is generally implied by the act itself, are by no means always forthcoming. Where the abortion has been induced by the woman herself, as is now so frequently the case, certainty upon the point becomes far more difficult. The only positive

evidence by which to judge of the real frequency of the crime is *confession*, and it is from the confessions of many hundreds of women, in all classes of society, married and unmarried, rich and poor, otherwise good, bad, or indifferent, that physicians have obtained their knowledge of the true frequency of the crime.

The confidential relations in which the physician stands to his patient; the understanding that nothing can wring from him her disclosures, save the direct commands of the law, so unlikely in any given case to become cognizant of its existence, elicits from a woman in almost every instance, especially if she believes herself in peril of death, a frank statement of the means by which she has been brought low; for it is evident that upon such knowledge must depend the measures of relief to which the physician may resort. Could the test of confession be always applied, as is, however, manifestly impossible, so many women die during or in consequence of an abortion, without the attendance of a physician and without making any sign, it would be found that many of the cases now reported upon our bills of mortality as deaths from hemorrhage, from menorrhagia, from dysentery, from peritonitis, from inflammation of the bowels or of the womb, from obscure tumor, or from uterine cancer, would be found in reality to be deaths from intentional abortion. At first sight, it would seem impossible that such grossly erroneous opinions as the above could be rendered; but their likelihood is readily perceived when it is recollected how often, when the best medical skill has been secured, attending circumstances are such as to excite little or no suspicion of the true state of the case, and a physical examination of the patient is therefore neglected. Women are still allowed to die of ovarian or of other tumors that might be easily and successfully removed, and, in default of a proper examination, are sometimes mistakenly pronounced instances of disease of the liver or of ordinary abdominal dropsy, and as such are buried. If such and similar errors can occur in chronic cases, where time and opportunity have permitted the most thorough examination and study, still more likely are they to take place during the hurry and anxieties of an acute and alarming attack, where the conscience and shame of the patient are alike interested in causing or keeping up a deception.

It will have been seen, then, not merely that an induced abortion may be attended with great immediate danger to the mother, but that in reality it is

very often fatal, either from the so-called shock to her system, or from hemorrhage, or from immediately ensuing peritonitis.

2. Should the woman survive these immediate consequences, no matter how excellently she may have seemed to rally, she is by no means safe as to her subsequent health. There are a host of diseases, some of them very dangerous, to which she is directly liable.

The product of conception is not always entirely gotten rid of. If a fragment remains, no matter how trifling in size, it may serve as the channel of the most severe and constant hemorrhagic discharge. Of this, examples are by no means infrequent; the flux lasting at times for very many months, and, if the cause is not finally detected and removed, hurrying the patient to her grave.

The product of conception is sometimes retained entire, after its detachment from the uterine walls has been supposed wholly effected. It may be carried for many years, always acting as a foreign body; at times occasioning extreme irritation, shown perhaps only by distant and otherwise inexplicable symptoms, or it may lie dormant for a time without apparent trouble—finally making itself known by some sudden explosion of disease, whether by purulent absorption and general pyæmia; by ulceration and discharge of foetal debris, through the intestines, bladder, or even abdominal integuments; or, by metritic inflammation, followed by sympathetic or consequent fatal peritonitis.

The patient, after an abortion, is very liable to one or another of the forms of uterine displacement, which are now known to lie at the foundation of so very large a proportion of the lame backs, formerly supposed consequent on spinal irritation; of the painfully neuralgic breasts, so often suggestive of incipient cancer; of the disabled limbs, pronounced affected with sciatica, cramps, or even paralysis; of the impatient bladders, from whose irritability or incontinence the kidneys are supposed diseased; of the obscure abdominal aches and pains, which unjustly condemn so many a liver and so many an ovary; of the constipation from mere mechanical pressure, which is so often thought to argue stoppage from

stricture or other organic disease; of the severe and intractable headaches that, resisting all and every form of direct or constitutional treatment, are supposed to indicate an incurable affection of the brain; of the easily deranged stomachs, that are so suggestive of ulceration or of malignant degeneration; of the general hypochondria and despondency, that of the most gentle, even almost angelic, dispositions make the shrew and virago, and of the purest and most innocent produce, in her own conceit, the worst of sinners, even at times effecting suicide. Who that has suffered will think this picture overdrawn? Who that has practised will not recognize in displacements, the key by which these riddles may be solved?

Their mode of causation is plain. After an abortion, just as after labor at the full term, the womb is more weighty than natural—its walls thicker and heavier than usual, alike by the excess of blood they contain, and by the increased deposition of muscular fibre. After childbed, it has been shown that this increase is normally lessened by certain physiological processes attending the natural completion of that function. After an abortion, these processes are absent or are but imperfectly performed. It is notorious that during the slight increase of weight from simple congestion that occurs at the regular monthly periods, women are very liable to displacement on any effort, extreme or slight, whether riding on horseback, gently lifting, or even straining at stool; during or after an abortion, the risk is very greatly increased.

With equal justice could I refer to the chances of trouble that otherwise accompany the premature ending of pregnancy. In many instances, I have now been summoned to attend, and frequently to operate upon, the consequences of local uterine or vaginal inflammation or of laceration, for both of these results may ensue where the womb has not been prepared to evacuate itself by the normal closure of pregnancy—and this, whether or not instruments may have been employed. Adhesions of varying situation and extent are not uncommon as the result of an abortion. They may be slight, and merely tilt or draw the womb to one side, giving rise only to severe local or distant neuralgias, and rendering the occurrence of a subsequent pregnancy somewhat dangerous; they may be more decided, and as bridles or septa partially close the canal of the vagina, rendering menstruation and conjugal intercourse alike difficult and painful; they may be so complete as entirely to obliterate the mouth of the womb or of the

external passage, in these instances preventing the escape of the menses, and rendering an operation necessary to avoid a rupture that might perhaps be fatal. Should it be the outer entrance that is occluded, the woman is of course entirely shut off from her husband's embrace; an effect that, however grateful to many an invalid, her shame would hardly be willing to accept as the consequence of disease.

These that I have mentioned are but a tithe of the pathological effects daily revealed to physicians, as in consequence of an intentional abortion. They are, however, sufficient for our purpose.

3. But not only is a woman in peril both as to life and health, alike at the time of an abortion and for months or years subsequently. She may seem to herself and to others successfully to have escaped these dangers, and yet when she has reached the critical turn of life, succumb.

At this eventful period, when the fountains of youth dry up, and the scanty circulation is turned from its accustomed channel, the woman ceases from the periodical discharges, which in health and with care are the secret of her beauty, her attractions, her charms. At its occurrence not merely is a change produced in the system generally, but the womb, no longer required, becomes atrophied and dwindles into insignificance. It may have had impressed upon it, years and years back, the stamp of derangement, till now not rendered effective; for, as in other portions of the body, a part once weakened may retain itself in tolerably good condition until some accident or other change develops or awakens the seed of disease. Thus it is that an ancient hypertrophy, or a chronic irritation, may become scirrhus and degenerate into undoubted carcinoma, or chronic menorrhagia or uterine leucorrhœa become intractable hemorrhage, or a latent fibroid deposit develop into an irrepressible, and, perhaps, irremediable tumor.

Little the comfort for a woman to have had her own way against the dictates of her conscience, the advice, perhaps, of her physician, if to the dangers she must directly incur, she must add the looking forward through all the rest of her life to possible disease, invalidism or death as the direct consequence of her folly; no wonder if she should consider prevention

better than such cure as this, and yet the prevention of pregnancy, by whatever means it may be sought, by cold vaginal injections, or by incomplete or impeded sexual intercourse, is alike destructive to sensual enjoyment and to the woman's health; her only safeguard is either to restrict approach to a portion of the menstrual interval, or to refrain from it altogether.

Not merely are certain of the measures to which I have alluded detrimental to the health of the woman, they are so to both parties engaged, and it is to their frequent employment, freely confessed as this is to the physician, that much of the ill health of the community, both of men and women is to be attributed. Though they may seem sanctioned by the rites of marriage, they are in some respects worse for the physical health, I might almost say for the moral health likewise, than illicit intercourse or even prostitution, for they bring both parties down to all the evils and dangers, mental and physical, of self-abuse.

V.—The Frequency of Forced Abortions, even among the Married.

All are familiar with the fact, to be perceived everywhere upon the most casual scrutiny, that the standard size of families is not on the average what used to be seen; in other words, that instances of an excess over three or four children are not nearly as common as we know was the case a generation or two back. No one supposes that men or women have, as a whole, so deteriorated in procreative ability as this might otherwise seem to imply.

There can be but one solution to the problem, either that pregnancies are very generally prevented, or that, occurring, they are prematurely cut short. We have seen that countless confessions prove that this surmise is true.

In the treatise to which we have already alluded, its author has shown by a series of unanswerable deductions, based on material gathered from many sources both at home and abroad, that forced abortions in America are of very frequent occurrence, and that this frequency is rapidly increasing, not in the cities alone, but in the country districts, where there is less excuse on the ground of excessive expenditures, the claims of fashionable life, or an overcrowding of the population. It was proved, for instance, that in one State that was named, one of the wealthiest in the Union, the natural increase of the population, or the excess of the births over the deaths, has of late years been wholly by those of recent foreign origin. This was the state of things existing in 1850; three years later it was evident that the births in that commonwealth, with the usual increase, had resulted in favor of foreign parents in an increased ratio. In other words, it is found that, in so far as depends upon the American and native element, and in the absence of the existing immigration from abroad, the population of our older States, even allowing for the loss by emigration, is stationary or decreasing.

The strange and otherwise unaccountable phenomenon to which we are now referring, appears to have been first elucidated in a memoir, upon the decrease of the rate of increase of population now obtaining in Europe and America, read by the same author in 1858 to the American Academy of Arts and Sciences, as a contribution to the science of political economy. That paper, with all its mass of evidence, that as yet there seems to have been no

attempt to controvert, we find embodied in the treatise to which I have referred, and which will prove of absorbing interest to even the casual reader.

Thus it is seen that abortion is a crime not merely against the life of the child and the health of its mother, and against good morals, but that it strikes a blow at the very foundation of society itself.

One of the strange and unexpected results at which the author we have so often referred to has arrived, but which he has both proved to a demonstration and satisfactorily explained, is that abortions are infinitely more frequent among Protestant women than among Catholic; a fact, however, that becomes less unaccountable in view of the known size, comparatively so great, of the families of the latter—in the Irish, for instance—the point being that the different frequency of the abortions depends not upon a difference in social position or in fecundity, but in the religion. We should suppose *à priori* that the Protestant, especially if of New England and Puritan stock, would be much the safer against all such assaults of the world, the flesh, and the devil. The following is the concise and convincing solution of the paradox that has been given:—

"It is not, of course, intended to imply that Protestantism, as such, in any way encourages, or, indeed, permits the practice of inducing abortion; its tenets are uncompromisingly hostile to all crime. So great, however, is the popular ignorance regarding this offence, that an abstract morality is here comparatively powerless; and there can be no doubt that the Romish ordinance, flanked on the one hand by the confessional, and by denouncement and excommunication on the other, has saved to the world thousands of infant lives."[\[14\]](#)

There is another surprising result that must strike every candid observer whose position gives him extended and frequent observation of women, and of late years the study and treatment of their special diseases has become so recognized that there are many physicians thus rendered competent to judge; it is this, but a second one of the many very frightful characteristics of induced abortion, that the act is proportionately much more common in the married than in the unmarried basing the calculation upon an equal number of pregnancies in each case.

This fact also may be easily accounted for. Abortion is undoubtedly more common in the earlier than in the later months of pregnancy, because the sensible signs of foetal vitality are then less permanently present, and the conscience is then better able to persuade itself that the child may possibly be without life, or the alarm wholly a false one. It is less common with first than with subsequent children, though instances of its occurrence with the former are certainly not rare. A woman who has never been pregnant does not, as a general rule, conceive as readily as one who has already been impregnated before, perhaps partly from the fact that intercourse, under certain circumstances, is more likely to be excessive in such cases, at times producing acute or subacute inflammation of the cervix uteri, and consequent sterility, as is so constantly observed in prostitutes, very many of whom, upon ceasing their trade, after accumulating a little property, as in France, or upon being sent to out-lying colonies, as in England, and becoming married, at once fall pregnant.

The unmarried woman, if *enceinte*, has not the opportunity of lying by for a few days' sickness, without exciting suspicion, that the married can easily seize for themselves. She is often not so conversant with the early symptoms of gestation, and is more prone to wait until its existence has been rendered certain by the sensation of quickening, in the hope, doubtless, not unfrequently, that this certainty may persuade her paramour to marriage, instead of deciding him against it, as is so often the case. It may be allowed, I think, that infanticide, the murder of a child after its birth, or its exposure to the vicissitudes and perils of chance, is more common among the unmarried, but that destruction of the foetus in utero, the rather prevails where the rites of law and religion would seem to have extended to that foetus every possible safeguard.

In the latest of the papers upon the subject of abortion, to which we have already alluded, there is furnished additional evidence as to the frequency of induced miscarriage.

"The infrequency of abortions," it is said, "as compared with labors at the full period, is disproved by the experience of every physician in special or large general practice, who will faithfully investigate the subject. The truth of this statement has been fully verified, in the instance of abortion criminally induced, by many of my professional friends who were at first inclined to doubt the accuracy of my inferences on that point; with

reference to abortions more naturally occurring, the evidence is of course more easily arrived at, and is in consequence proportionately more striking. In many cases of sterility it will be found that the number of abortions in a single patient have been almost innumerable; and, it may be added, in a large proportion of the cases of uterine disease occurring in the married, inquiry as to their past history will reveal abortions, unsuspected perhaps even by the family physician, as the cause. It is not so much the general practitioner, the hospital attendant, or the accoucheur, as such, who can testify as to the true frequency of abortion; for many cases, even of the most deplorably fatal results, do not seek for medical assistance at the time of the accident. The real balance sheet of these cases is to be made out by the hands which are more especially called to the treatment of chronic uterine disease."[\[15\]](#)

But not only is abortion of excessively frequent occurrence; the nefarious practice is yearly extending, as does every vice that custom and habit have rendered familiar. It is foolish to trust that a change for the better may be spontaneously effected. "Longer silence and waiting by the profession would be criminal. If these wretched women, these married, lawful mothers, ay, and these Christian husbands, are thus murdering their children by thousands through ignorance, they must be taught the truth; but if, as there is reason to believe is too often the case, they have been influenced to do so by fashion, extravagance of living, or lust, no language of condemnation can be too strong."[\[16\]](#)

VI.—*The Excuses and Pretexts that are given for the Act.*

I have already stated that in many instances it is alleged by the mother that she is ignorant of the true character of the act of wilful abortion, and in some cases I am satisfied that the excuse is sincerely given, although, in these days of the general diffusion of a certain amount of physiological knowledge, such ignorance would seem incredible.

The above is, however, the only excuse that can be given with any show of plausibility, and even this holds for nought should the case by any chance come under the cognizance of the law, just as would a plea of ignorance of the law itself; it being always taken for granted that any intentional act implies a knowledge of its own nature and its consequences, be these trivial or grave.

I have stated that in no case should abortion be permitted, or allowed to be permitted, by the advice or approval of a single physician; that in all cases where such counsel is taken, it should be from a consultation of at least two competent men. Submitted to such a tribunal, seldom indeed would the sanction be given.

Ill health would be no excuse, for there is hardly a conceivable case where the invalidism could either not be relieved in some other mode, or where by an abortion it would not be made worse.

The fear of childbed would be no excuse, for we have seen that its risks are in reality less than those of an abortion, and its pains and anguish can now be materially mitigated or entirely subdued by anæsthesia, which the skill of medical science can induce, and should induce, in every case of labor. My remarks apply not to first pregnancies alone, when one might expect that women would naturally be anxious and timid, but even to those cases of pregnancy that have been preceded by difficult and dangerous labors.

It has been urged, and not so absurdly as would at first sight appear, that the present possibilities of painless and so much safer delivery, by changing thus completely the primal curse, from anguish to a state frequently of positive pleasure, remove a drawback of actual advantage, and, by offering

too many inducements for pregnancy, tend to keep women in that state the greater part of their menstrual lives. [\[17\]](#)

Much of the low morale of the community, as regards the guilt of abortion, depends upon the very erroneous doctrines extensively inculcated by popular authors and lecturers for their own sinister purposes.

One of these is the doctrine that it is detrimental to a woman's health to bear children beyond a certain number, or oftener than at certain stated periods, and that any number of abortions are not merely excusable, as preventives, but advisable; it being entirely forgotten that the frequency of connection may be kept within bounds, and the times of its occurrence regulated, by those who are not willing to hazard its consequences; that if women will, to escape trouble, or for fashion's sake, forego the duty and privilege of nursing,—a law entailed upon them by nature, and seldom neglected without disastrous results to their own constitutions,—they must expect more frequent impregnation; that the habit of aborting is generally attended with the habit of more readily conceiving; and that abortions, accidental, and still more if induced, are generally attended by the loss of subsequent health, if not of life.

This error is one which would justify abortion as necessary for the mother's own good; a selfish plea. The other is based on a more generous motive. It is, that the fewer one's children the more healthy they are likely to be, and the more worth to society. It is, however, equally fallacious with the first, and is without foundation in fact. The Spartans and Romans, so confidently appealed to, gave birth probably to as many weakly children as do our own women; that they destroyed many for this reason, in infancy, is notorious. The brawny Highlanders are not the only offspring of their parents; the others cannot endure the national processes of hardening by exposure and diet, and so die young from natural causes. But were this theory true even so far as it goes, the world, our own country, could ill spare its frailer children, who oftenest, perhaps, represent its intellect and its genius. [\[18\]](#)

VII.—*Alternatives, Public and Private, and Measures of Relief.*

It may be asked if there is no latitude to be allowed for extreme cases of the character already described. We are compelled to answer, None. If each woman were allowed to judge for herself in this matter, her decision upon the abstract question would be too sure to be warped by personal considerations, and those of the moment. Woman's mind is prone to depression, and, indeed, to temporary actual derangement, under the stimulus of uterine excitation, and this alike at the time of puberty and the final cessation of the menses, at the monthly period and at conception, during pregnancy, at labor, and during lactation; a matter that also seems to have been more thoroughly investigated by the authority I have so freely drawn from in reference to the question of abortion, than by any other writer in this country.^[19] During the state of gestation the woman is therefore liable to thoughts, convictions even, that at other times she would turn from in disgust or dismay; and in this fact, that must be as familiar to herself as it is to the physician, we find her most valid excuse for the crime.

Is there then no alternative but for women, when married and prone to conception, to occasionally bear children? This, as we have seen, is the end for which they are physiologically constituted and for which they are destined by nature. In it lies their most efficient safeguard for length of days and immunity from disease. Intentionally to prevent the occurrence of pregnancy, otherwise than by total abstinence from coition, intentionally to bring it, when begun, to a premature close, are alike disastrous to a woman's mental, moral, and physical well-being.

There are various alternatives to these so degrading habits of the community. To some of them equal objections apply. But, in reality, there is little difference between the immorality by which a man forsakes his home for an occasional visit to a house of prostitution, that he may preserve his wife from the chance of pregnancy, and the immorality by which that wife brings herself wilfully to destroy the living fruit of her womb. Allowing for the weakness and frailty of human nature, the first were surely the preferable of the twain. But we need not compare these odious customs, each so common and each so wrong. With greater frugality of living, and

greater self-denial, and self-control in more trivial matters, there need be no interference, at least no intentional interference, on the part of either husband or wife with the first great law of human weal and human happiness, in accordance with which, by the divine institution of home and its mutual joys, the due propagation and natural increase of the species was intended to be insured.

Were well-arranged foundling hospitals provided in all our large cities, they would prove a most efficient means of preventing the sacrifice of hundreds of the children of shame, and, so far from encouraging immorality, they would afford one of its surest preventives, for by keeping a woman from the crime of infanticide or the equally guilty intentional miscarriage, they would save her from one element of the self-condemnation and hatred which so often hurry the victim of seduction downward to the life of the brothel. A certain amount of illicit intercourse between the sexes will always take place, no matter how condemned by law, until the public standard of morals shall be so elevated as to render the practice unknown. This is a fact that is self-evident, and cannot be frowned out of existence. How much better to provide for its innocent victims, its irresponsible offspring, than, as now, to permit the so frequent destruction of both. It is foolish to assert that by such provision we but pander to sin. In many of these instances the woman is innocent of intentional wrong, being led astray by her perfect confidence in the constancy and good faith of a lover, and in others she is, doubtless, ignorant of the true character of the act she is committing. Should she be driven by what is comparatively a venial, and not so unnatural an offence, to one of the deadliest crimes?

But for the married, who have not this strong stimulus of necessity, and the excuse of having been led astray or deceived, there need be no public channel provided, through which to purchase safety for their children. Is it not, indeed, inconceivable that the very women, who, when their darlings of a month old, or a year, are snatched from them by disease, find the parting attended with so acute a pang, can so deliberately provide for, and congratulate themselves and each other, upon a wilful abortion! Here, words fail us.

"Of the mother, by consent or by her own hand, imbrued with her infant's blood; of the equally guilty father, who counsels or allows the crime; of the wretches, who by their wholesale murders, far out-Herod

Burke and Hare; of the public sentiment which palliates, pardons, and would even praise this, so common, violation of all law, human and divine, of all instinct, all reason, all pity, all mercy, all love, we leave those to speak who can."[\[20\]](#)

VIII.—*Recapitulation.*

We have now seen that the induction of a forced abortion is, in reality, a crime against the infant, its mother, the family circle, and society; that it is attended with extreme danger, whether immediate or remote, to the mother's happiness, to her health, mental and physical, and to her life; that there is, in reality, no valid excuse for it that can be urged, save when it has been decided to be an absolute necessity by two competent medical men, and that there are alternatives, such as greater temperance and frugality of living, which, if practised, would be equally for the public and for private good.

We have also seen that not only is abortion wrong, no matter from what quarter we contemplate the act, but so also is the deliberate prevention of pregnancy in the married alike detrimental to the health and to the moral sense. Moderation and temperance here, as elsewhere, afford the golden rule. Under the circumstances to which I allude, total abstinence may, as far as the health is concerned, be as injurious as is the other extreme of excessive indulgence. To the woman in good bodily condition, occasional child-bearing is an important means of healthful self-preservation; to the invalid, an intentional miscarriage is no means of cure; if she be in poor health, let her seek aid and relief in the proper quarter, but not, by thus tampering with natural and physiological laws, alike imperilling both body and soul.

Were woman intended as a mere plaything, or for the gratification of her own or her husband's desires, there would have been need for her of neither uterus nor ovaries, nor would the prevention of their being used for their clearly legitimate purpose have been attended by such tremendous penalties as is in reality the case.

We have seen that in a perverted and mistaken public opinion lies the secret of the whole matter. "Ladies boast to each other of the impunity with which they have aborted, as they do of their expenditures, of their dress, of their success in society. There is a fashion in this, as in all other female customs, good and bad. The wretch whose account with the Almighty is heaviest with guilt, too often becomes a heroine. So truly is this the case, that the woman who dares at the present day, publicly or privately, to acknowledge it the holiest duty of her sex to bring forth living children,

'that first, highest, and in earlier times almost universal lot,'^[21] is worthy, and should receive, the highest admiration and praise."^[22]

We have seen that it is no trifling matter, this awful waste of human life. It is a subject that demands the best efforts of the whole medical profession, both as a body and as men, whose every relation its members are alike best able to appreciate, to understand, and to advise concerning. "Physicians alone," says Prof. Hodge, "can rectify public opinion; they alone can present the subject in such a manner that legislators can exercise their powers aright in the preparation of suitable laws; that moralists and theologians can be furnished with facts to enforce the truth upon the moral sense of the community, so that not only may the crime of infanticide be abolished, but criminal abortion properly reprehended; and that women in every rank and condition of life may be made sensible of the value of the foetus, and of the high responsibility which rests upon its parents."^[23]

"If the community were made to understand and to feel that marriage, where the parties shrink from its highest responsibilities, is nothing less than legalized prostitution, many would shrink from their present public confession of cowardly, selfish, and sinful lust. If they were taught, by the speech and daily practice of their medical attendants, that a value attaches to the unborn child, hardly increased by the accident of its birth, they also would be persuaded or compelled to a similar belief in its sanctity, and to a commensurate respect."^[24]

We have seen that the above is the deliberate decision of those who, from their observation and knowledge of the subject, are best able to judge. "Whatever estimate may attach to our opinion," says an eminent medical journalist, "we believe that not only ought these things not so to be, but that the public should know it from good authority. For ourselves, we have no fear that the truth, in reference to the crime of procuring abortion, would do aught but good. It would appear that sheer ignorance, in many honest people, is the spring of the horrible intra-uterine murder which exists among us; why not, then, enlighten this ignorance? It would be far more effectually done by some bold and manly appeal than by the scattered influence of honorable practitioners alone. Will not the mischief, by and by, be all the more deadly for delaying exposure and attempting relief?"^[25]

We have also seen that "it might be, it very likely would be, for our immediate pecuniary interest, as a profession, to preserve silence; for we have shown that abortions, of all causes, tend to break down and ruin the health of the community at large. But to harbor this thought, even for a moment, were dishonorable."[\[26\]](#)

This subject, at all times so important for the consideration of the people at large, is invested with unusual interest at a period like the present, when, at the close of a long and closely contested war, greater fields for human development and success are opened than ever before. All the fruitfulness of the present generation, tasked to its utmost, can hardly fill the gaps in our population that have of late been made by disease and the sword, while the great territories of the far West, just opening to civilization, and the fertile savannas of the South, now disenthralled and first made habitable by freemen, offer homes for countless millions yet unborn. Shall they be filled by our own children or by those of aliens? This is a question that our own women must answer; upon their loins depends the future destiny of the nation.

In the hope that the present appeal may do somewhat to stem the tide of fashion and depraved public opinion; that it may tend to persuade our women that forced abortions are alike unchristian, immoral, and physically detrimental; that it may dissipate the ignorance concerning the existence of foetal life that so extensively prevails, and be the means of promoting the ratio of increase of our national population, so unnaturally kept down, the National Medical Association addresses itself to all American mothers; for thus, in the closing words of the Essay from which I have so frequently and so freely drawn, would "the profession again be true to its mighty and responsible office of shutting the great gates of human death."

APPENDIX.

In the prefatory remarks attention was called to the fact that the writer may have incidentally expressed personal opinions of his own, in the course of his Essay, that are not fully coincided in by every member of the medical profession, and reference was made to correspondence that had already occurred in connection with this subject. This correspondence is now presented, and will explain itself.

It will be noticed that I withhold the name of the gentleman who addressed me, this being done at his own particular request, though I would willingly have given him opportunity publicly to assume the position against anæsthetics in childbed, so long held by his illustrious townsman, Prof. Meigs. Discretion, however, has thus far been found, by the opponents of anæsthesia, to be the better part of valor. In a subsequent letter, under date of February 19, my friend writes me as follows: "When the pamphlet appears, I will aid you to my utmost ability in its circulation, and believe it will be productive of eminent good."

The criticism referred to is as follows:

"PHILADELPHIA, Feb. 10, 1866.

"MY DEAR DOCTOR:

"Your Essay gives much satisfaction to all who have read it, of course, a very select few (the book being still in the printer's hands), but several have most strenuously objected to one or two points, inasmuch as the profession are to take hold of the matter and endeavor to place it in the hands of their female patients. The only one concerning which I have deemed it necessary to write you, is your remark relative to the use of anæsthesia in all cases of labor. Now, Doctor, though many are fully with you, yet many would object most decidedly; in fact, it is by special request that I now ask you to omit, if possible, those few lines. Some of our profession—I believe many more would if they had read the Essay—object to placing it in the hands of their patients, and thus condemning their own action and

advice. Many in this city, to my positive knowledge, object to the use of anæsthesia in labor, *in toto*. Many others only use it in special cases. While the number of those who use or advise it in all cases is *very, very* small. I am satisfied the omission of these few lines would give great satisfaction, and remove almost entirely all objections to the paper.

"I had not the pleasure of reading it prior to seeing the proof, and must express to you my congratulations for your success. Nothing pleased me so much as the gratification so pleasantly expressed by your good father, as he so unexpectedly found his son to be the essayist. For that reason, I am much pleased that you requested, 'for a whim,' to have the seals broken upon the platform.

"Very sincerely,
"Your friend,
"_____."

To the above letter I thus replied:

"HOTEL PELHAM, BOSTON, 12 Feb., 1866.

"MY DEAR DOCTOR:

"I have received your kind letter of the 10th inst., and am glad you have spoken so frankly. I should be delighted to grant the request thus courteously made, were it possible for me consistently or conscientiously to do so.

"This subject of anæsthesia in labor is one to which, for now thirteen years, I have given earnest attention, and is one of the most important that has ever presented itself to medical men.

"It is my sincere conviction that the use of anæsthetics in childbed is not only indicated by every consideration of humanity, but that it serves materially to lessen the average rate of mortality to both mother and child.

"Previously to the present date my voice has given no uncertain sound upon this question. I send you, by to-day's mail, a copy of my little book, "Eutokia," which, two or three years since, excited some

attention from the profession, both at home and abroad, and has made, I am happy to know, many converts to the true faith.

"If you will turn to the preface of the American edition of my Simpson's Obstetrics, published in 1855, you will find upon page xvi. the following language, none of which, in the added experience and reflection of all these years, can I honestly retract. 'But yesterday, and the man who dared give ether or chloroform in labor was considered as breaking alike the laws of nature and of God; the time is probably close at hand when such will be said of all who withhold them, even in natural labor.'

"In the present instance, the Essay has been carefully scrutinized by a Committee of the Association,—that on Prize Essays,—and has been unqualifiedly approved. It has been accepted by the Association, has been ordered to be printed, and, by special vote, to be pushed to the most extended circulation possible, in the belief that its influence would be only for the highest good of the community. I am always responsible at the bar of professional opinion for any sentiment that I may utter, and avow none that I am not prepared to defend. If any gentleman differs from me in opinion, let him carefully prepare an essay upon the subject, present it to the Association, and, if they so decide, I will cheerfully vote that it also be presented to the people as a rejoinder to myself.

"With all respect for those who think otherwise, I cannot omit or change one word of the Essay, and have no right to do so if I would.

"As the present, however, is a point that, though only incidentally mentioned, yet involves some conflict of professional opinion, while the Association are of a single mind as to the matter of Criminal Abortion, I shall cheerfully append your letter to the published edition, and thus save your associates from any implied credit or discredit of indorsing my own opinion. This course will be unnecessary with regard to the Transactions, as the Association is known to be irresponsible for any views advanced by its members, save when adopted by special resolution, and its volume does not reach the parties in reality most interested, namely, the parturient women, whose

anguish, so far as such may be unnecessary, it should be our highest duty to relieve.

"Thanking you for the generally favorable opinion you convey to me for yourself and those for whom you write, for I always value the approval of my friends next to my own self-respect,

"I am yours, sincerely,

"HORATIO R. STORER.

"DR. ———

———.

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FOOTNOTES

[1] "The preamble and resolution were signed by Philo Tillson, President, and S. L. Andrews, Secretary, of the Northeastern District Medical Association of Michigan, as having been adopted by that Association, at its annual meeting, held on the 19th day of May, 1864, and which its delegate, Dr. Stockwell, was

instructed to present to the Association."—*Trans. Am. Med. Association*, 1864, p. 60.

[2] Now that the decision of the Prize Committee has been made, the purpose of the above stipulation becomes evident. The Committee consisted of Drs. D. Humphreys Storer, Henry I. Bowditch, J. Mason Warren, and John H. Dix, of Boston; the Chairman of the Committee being the writer's father.

[3] The Committee consisted of Drs. H. R. Storer, of Boston; T. W. Blatchford, of Troy, N. Y.; H. L. Hodge, of Philadelphia; C. A. Pope, of St. Louis; Barton, of South Carolina; A. Lopez, of Mobile; and W. H. Brisbane, of Arena, Wis.

[4] Studies of Abortion; Boston Medical and Surgical Journal, February 5, 1863.

[5] Transactions of the American Medical Association, 1859, vol. xii. p. 75.

[6] Percival: Medical Ethics, p. 79.

[7] Man Transformed, Oxford, 1653.

[8] Regina v. Wycherly, 8 Carrington and Payne, 265.

[9] Criminal Abortion in America, p. 5.

[10] Owen: Cyclopædia of Anatomy and Physiology, vol. iii. p. 322.

[11] Naegele: Treatise on Obstetric Auscultation, p. 50.

[12] Studies of Abortion: Boston Medical and Surgical Journal, February 5, 1863.

[13] Criminal Abortion in America, p. 42.

[14] Essay on Criminal Abortion, p. 42.

[15] Studies of Abortion, &c.

[16] Essay on Criminal Abortion, p. 106.

[17] Essay on Criminal Abortion, p. 34.

[18] Essay on Criminal Abortion, p. 32.

[19] H. R. Storer: The Causation, Course, and Treatment of Insanity in Women; a gynæcist's idea thereof. Transactions of the American Medical Association, vol. xvi., 1865.

[20] Essay on Criminal Abortion, p. 13.

[21] A Woman's Thoughts about Women. By the author of "John Halifax, Gentleman," p. 14.

[22] Essay on Criminal Abortion, p. 55.

[23] Introductory Lecture at University of Pennsylvania, 1854, p. 19.

[24] Essay, &c., p. 101.

[25] Boston Medical and Surgical Journal, editorial, December 13, 1855.

[26] Essay, &c., p. 106.

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